

Whangarei District Council Meeting

Supplementary Agenda

Date: Wednesday, 28 August, 2024

Time: 9:00 am

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

4. Decision Reports / Whakatauripoata

4.1 Dog Management Policy and Bylaw - Deliberations

4.1.1 *Dog Management Policy and Bylaw Replacement Attachments 1 and 2* **3**

4.1.1 Dog Management Policy and Bylaw - Deliberations

Meeting: Whangarei District Council
Date of meeting: 28 August 2024
Reporting officer: Will McNab (Strategic Planner – Bylaw)

1 Purpose / Te Kaupapa

To provide replacement attachments 1 and 2.

2 Background / Horopaki

Subsequent to the agenda being circulated, it was discovered that attachments 1 and 2 were not showing the tracked changes. Replacement versions are attached.

3 Attachments / Ngā Tāpiritanga

Attachment 1 – Replacement Draft Dog Management Policy showing track changes
Attachment 2 – Replacement Draft Dog Control Bylaw showing track changes

Whangarei District Council

Dog Management Policy 2024

draft

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Introduction

1. Purpose

- 1.1. To provide for the needs of dogs and their owners in a way that also protects the community and wildlife.
- 1.2. To achieve this purpose, the Policy aims to:
 - a. minimise the problems caused by dogs; and
 - b. protect dogs from harm and ensure their welfare; and
 - c. provide opportunities for owners to take their dogs into public places.

2. Interpretation

- 2.1. Any word used in this Policy that is not included in clause 2.2 below and which is defined in section 2 of the Dog Control Act 1996, has for the purposes of this Policy, the same meaning as in section 2 of the Act.

- 2.2. In this Policy, unless the context otherwise requires —

Access way	has the meaning given by section 315 of the Local Government Act 1974 .
Act	means the Dog Control Act 1996 .
Authorised Officer	means a Whangarei District Council staff member or a Council authorised contractor in charge of a public place.
Beach	means and includes the following: d. the foreshore as defined by section 2 of the Resource Management Act 1991 e. the inter-tidal zone above mean low water springs f. any adjacent area that can reasonably be considered part of the beach environment including areas of sand, pebbles, shingle, dunes or coastal vegetation and includes the adjacent coastal marine.
Bylaw	Means the Whangarei District Council Dog Control Bylaw 2024.
Cemetery	means any land or premises for the burial and/or cremation of the dead and includes a closed cemetery and urupā.
Control	in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog.
Council	means Whangarei District Council, including any person or committee delegated to act on its behalf in relation to this Policy.
Council-controlled public place	means all public places owned or managed by Whangarei District Council.
District	Means the area administered by Council as defined in Part 2 of Schedule 2 of the Local Government Act 2002
Dangerous dog	means a dog that has been classified as a dangerous dog under section 31 of the Act.
Footpath	has the meaning given by section 315 of the Local Government Act 1974 .

<i>Foreshore</i>	has the meaning given by section 2 of the Resource Management Act 1991 .
<i>Menacing dog</i>	means a dog that has been classified as a menacing dog under section 33A of the Act.
<i>Neutered dog</i>	has the meaning given by section 2 of the Act.
<i>Owner</i>	has the meaning given by section 2 of the Act.
<i>Park/Reserve</i>	means any land vested in or administered by Council under the provisions of the Reserves Act 1977 ; and/or any park, domain or recreational area under the control or ownership of Council.
<i>Playground</i>	means a developed outdoor area that contains children's play equipment or objects, and includes a skatepark.
<i>Policy</i>	means this policy, being the Whangarei District Council Dog Management Policy 2024.
<i>Premise and Premises</i>	means any land, dwelling, storehouse, warehouse, shop, cellar, yard, building, or part of the same, or enclosed space separately occupied. All lands, buildings and places adjoining each other and occupied together are deemed to be the same premises.
<i>Private way</i>	has the meaning given by section 315 of the Local Government Act 1974 .
<i>Public place</i>	has the meaning given by section 2 the Act.
<i>Road</i>	has the meaning given by section 315 of the Local Government Act 1974 except that where a road is adjacent to a park, and the land within the road and park is developed in an integrated way, the common boundary between the road and park will be reduced or extended to: g. a line parallel to the road that follows any physical separation between the road and park (e.g. fence or bollards); or h. where no physical separation exists, a line parallel to the road that follows the edge of the road carriageway, footpath or cycle track that is closest to the centre of the park.
<i>Sports field</i>	means any area developed or marked out, for example those used for soccer, rugby, or rugby league, artificial turf, sports range, sports park or velodrome.
<i>Skatepark</i>	means a purpose-built recreational environment made for skateboarding, BMXing, rollerblading, roller skating or scootering, and includes pump tracks.
<i>Service lane</i>	has the meaning given by section 315 of the Local Government Act 1974 .
<i>Working dog</i>	has the meaning given by section 2 of the Act.

3. Related information

- 3.1. **Related information** and links to webpages do not form part of this Policy and may be inserted, changed or removed without any formality.

4. Relationship between the Policy and the Bylaw

- 4.1. Under the Dog Control Act 1996 (the Act), Council is required to develop a Policy on Dogs (the Policy) and may make a bylaw (the Bylaw) to implement the Policy. A bylaw cannot be inconsistent with a policy. Dog owners who do not comply with the Act or the Bylaw may be subject to enforcement action.

The broad purpose of the Act is to:

- a. provide for the care and control of dogs; and
- b. address issues relating to damage caused by dogs.

The purpose of the Policy and Bylaw is to provide for matters specified in the Act that must be included, as well as a range of additional matters that Council may include if deemed necessary or appropriate.

The Policy and Bylaw do not duplicate any provisions of the Act, but align with it to provide a comprehensive framework of rules for the District.

However, to assist in understanding, this Policy contains related information and links to webpages regarding relevant provisions of the Act or to assist in other ways. This information does not form part of this Policy and may be inserted, changed or removed without any formality.

The approaches and requirements of the Policy and Bylaw can be summarised as follows:

Document	Purpose	What the document covers
Dog Management Policy	Required to have regard to: • minimising danger, distress and nuisance • restricting uncontrolled access to public places that are frequented by children • the use of streets and public amenities without fear of attack or intimidation by dogs • the exercise and recreational needs of dogs and their owners.	• Nature and application of the Bylaw. • Fees and charges relating to dogs. • General dog access rules, including default dog access rules. • Specific areas where dogs are prohibited, either at all times or during specific dates and times. • Specific areas where dogs must be on-leash, either at all times or during specific dates and times. • Specific areas where dogs are allowed off-leash. • Specific designated dog exercise areas. • Requirements for menacing dogs. • Council's and dog owners' obligations.

Dog Control Bylaw	To provide adequate opportunities to fulfil the exercise, recreational and socialisation needs of dogs and their owners while minimising any danger, distress or nuisance caused by dogs.	• Clauses to give effect to the dog access rules contained in the Policy for enforcement purposes. • Temporary changes to the dog access rules. • Requirements to pick up dog faeces. • Rules for dogs on heat and dogs with infectious diseases. • Requirements to neuter uncontrolled dogs. • Requests to review a menacing dog classification. • Enforcement, offences and penalties.
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Related information about the Dog Management Policy

Section 10(5)(a) of the Act requires Council to identify any land within the District that is included in a controlled dog area or open dog area under section 26SZ of the Conservation Act 1987.

This relates to land that is under the control of the Department of Conservation and where the Department has by gazette notice declared the land to be a controlled dog area or an open dog area. This information is provided in [Appendix 1](#) of this Policy.

5. Fees and charges relating to dogs

- 5.1. Section [37](#) of the Act sets out what matters Council may set fees for in relation to its dog control activities. Council's fees and charges are reviewed through the Long Term Plan and Annual Plan processes under the [Local Government Act 2002](#).
- 5.2. Dog registration fees will be set through the processes detailed in clause 5.1 and in accordance with the following provisions—
 - a. fees for neutered dogs will be set at a lower rate than the standard registration fee:
 - b. fees for working dogs (excluding disability assist dogs) will be set at a lower rate than the standard registration fee:
 - c. fees for disability assist dogs as defined in [Schedule 5](#) of the Act will not be charged:
 - d. fees for the first registration of puppies will be charged on a pro-rata monthly rate.

Related information about fees and charges for dogs

Section [32](#) of the Act requires fees for dangerous dogs to be set at 150% of the standard dog registration fee.

Registration and enforcement

6. What will Whangarei District Council do?

- 6.1. Council will provide registration administration services including—
 - a. maintaining a record of all dogs registered in the District, including those classified as dangerous or menacing;
 - b. maintaining a record of probationary and disqualified owners;
 - c. informing and educating dog owners through the registration process;
 - d. following up on non-registered dogs and non-compliance with the Bylaw or the Act.
- 6.2. Council will provide dog compliance and enforcement activities to proactively use Council's powers under the Act to—
 - a. seize and hold dogs that are a threat to public safety or where concerns regarding a dog's welfare are identified;
 - b. classify dogs identified as menacing or dangerous as defined in the Act;
 - c. classify and disqualify owners as necessary by applying the processes set by sections [21](#) and [25](#) of the Act;
 - d. provide services that promote responsible dog management, including but not limited to investigating and resolving dog-related issues.

Related information on dangerous dogs

In accordance with Sections [31](#) and [57A](#) of the Act, Council must classify a dog as dangerous where —

- a. the owner of the dog has been convicted of an offence because the dog rushed at or startled any person, animal or vehicle in a manner that caused, or was likely to cause a vehicle accident or to endanger, injure or kill a person; or
- b. the dog is considered on reasonable grounds to be a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife, based on sworn evidence of aggressive behaviour; or
- c. the owner admits in writing that the dog poses a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife.

When a dog is classified as dangerous—

- a. ownership of the dog cannot change without consent from Council;
- b. the dog maintains its classification no matter where it lives in New Zealand;
- c. the dog must be:
 - i. neutered within one month of receipt of the classification; and
 - ii. microchipped within two months of the date of classification; and
 - iii. muzzled in any public place or private way except when confined in a vehicle or cage; and
 - iv. kept within a securely fenced portion of the dog owner's property that provides dog-free access to at least one door of all dwellings on the property; and
 - v. controlled on a leash in any public place or private way (except when in a designated dog exercise area).

Dog owners that fail to comply with the above requirements may be subject to a fine under the Act.

Regulation 12 of the [Animal Welfare \(Care and Procedures\) Regulations 2018](#) includes provisions for the safe use of muzzles. Failure to comply with the regulation is an offence.

7. What does Whangarei District Council expect of dog owners?

- 7.1. Dog owners are expected to—
- register their dog(s); and
 - microchip their dog(s); and
 - neuter their dog(s) if required; and
 - meet the requirements of dogs classified as dangerous or menacing under the Act ([section 32](#) and [section 33E](#)); and
 - meet the requirements of a classified, probationary or disqualified owner under the Act ([section 21](#) and [section 25](#)).

8. Classification of menacing dogs under Section 33C of the Act

- 8.1. Due to the visual similarities between American Staffordshire Terriers and Pitbull Terriers, Council will classify all American Staffordshire Terriers as menacing, unless—
- the owner provides a certificate of ownership issued by Dogs New Zealand which indicates the dog's pedigree and has the dog's microchip number recorded on the certificate; or
 - the owner provides a DNA certificate indicating that American Staffordshire Terrier is the predominant or largest percentage of the breed makeup.

Related information about American Staffordshire Terriers

The Act requires all dogs of the breeds or types listed in Schedule 4 of the Act to be classified as menacing. [Schedule 4](#), Part 2 lists the American Pitbull Terrier as a type of dog. It is generally accepted that the visual characteristics of an American Staffordshire Terrier are similar to that of an American Pitbull Terrier.

9. Neutering of Menacing Dogs

- 9.1. Council requires all dogs that have been classified as menacing to be neutered within one month of receipt of the classification.
- 9.2. A dog classified as menacing maintains its classification no matter where it lives in New Zealand. The requirements of clause 9 apply to dogs classified by any other council and registered with Whangarei District Council.
- 9.3. Council may defer the requirement to meet clause 9.1 above—
- in accordance with section [33E\(1\)\(b\)\(ii\)](#) of the Act;
 - where the owner of the dog classified as menacing lodges an objection in accordance with the requirements of the Act. If Council decides to retain the menacing classification, the dog must be neutered within one month of receipt of this decision;
 - where additional enforcement actions or proceedings are being taken by Council against the owner of the dog because of the actions that resulted in the classification being made under section 33A(1) of the Act. Council reserves the right to request a menacing dog to be neutered on the completion of any such proceedings and within one month of Council notifying the dog owner of this request.

Related information on menacing dogs

Council must classify a dog as menacing where—

- a. it has not been classified as dangerous; and
- b. the dog may pose a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife, because of—
 - i. any observed or reported behaviour of the dog;
 - ii. any characteristics typically associated with the dog's breed or type;
 - iii. if the dog belongs wholly or predominantly to one or more of the breeds or types listed in [Schedule 4](#) of the Dog Control Act 1996.

The owner of a dog classified as menacing must ensure the dog is—

- a. neutered within one month of receipt of the classification; and
- b. microchipped within two months of the date of the classification; and
- c. muzzled in any public place or private way except when confined in a vehicle or cage.

Dog owners that fail to comply with the above classification requirements may be subject to a fine under the Dog Control Act 1996.

Regulation 12 of the [Animal Welfare \(Care and Procedures\) Regulations 2018](#) includes provisions for the safe use of muzzles. Failure to comply with the regulation is an offence.

10. What is covered by the Dog Control Bylaw 2024?

- 10.1. Owners of dogs classified as menacing due to the behaviour of the dog are encouraged to undertake steps to improve the behaviour of the dog to be eligible to have the classification of the dog reviewed.

Responsible dog ownership

11. What will Whangarei District Council do?

- 11.1. Council will provide services that support the promotion of responsible dog management, including—
- encouraging educational opportunities to promote the purposes of the Policy and Bylaw from time to time;
 - promoting the welfare of dogs, as stated in the [Code of Welfare: Dogs, the Animal Welfare \(Care and Procedures\) Regulations 2018](#) and [Animal Welfare Act 1999](#). This includes, but is not limited to, providing sufficient food, water, shelter and care;
 - providing services that promote responsible dog management, including investigating and resolving complaints and other dog-related issues;
 - working to change attitudes and behaviours of irresponsible dog owners and, where appropriate, penalising irresponsible dog owners.

Related information about the Code of Welfare: Dogs, the Animal Welfare (Care and Procedures) Regulations 2018 and the Animal Welfare Act 1999

The Ministry of Primary Industries is responsible for administering the Animal Welfare Act 1999 and the associated Regulations and Codes.

The Code of Welfare: Dogs establishes minimum standards for the care and management of dogs. There are also housing requirements under the Regulations specific to dogs.

While not directly enforceable, failure to meet a relevant minimum standard in the Code of Welfare: Dogs may be used as evidence to support prosecution under the Animal Welfare Act 1999.

12. What does Whangarei District Council expect of dog owners?

- 12.1. Dog owners are expected to—
- know and comply with the rules concerning the management of their dog(s); and
 - be responsible for their dog's behaviour; and
 - provide proper care and attention to their dog(s), including providing sufficient food, water, shelter and adequate exercise, as defined by the [Animal Welfare Act 1999](#) and Act; and
 - consider neutering their dog(s) [at an early age as early as possible under guidance from a vet](#); and
 - ensure their dog does not leave their property by itself; and
 - take all reasonable steps to ensure their dog does not cause a nuisance to any other person. Be particularly vigilant near children and closely supervise interaction; and
 - appropriately remove and dispose of their dog's faeces; and
 - always keep their dog under control.

13. What is covered by the Dog Control Bylaw 2024?

- 13.1. When in a public place or premises, dog owners must ensure the immediate removal and disposal of their dog's faeces in a way that does not cause nuisance.
- 13.2. Dog owners may be required to neuter their dog, if the dog has been found to be uncontrolled more than once in a 12-month period.

Related information about Bylaw breaches

Owners who do not comply with the above are in breach of the Bylaw and may be subject to enforcement action.

Dog access rules

14. What will Whangarei District Council do?

- 14.1. Council will provide dog access rules in the Bylaw that are comprehensive, consistent, easy to understand and comply with the following dog access principles:
 - a. recognise dog owners as legitimate users of public places and that dog access to these places is essential for dog welfare:
 - b. integrate, where practicable, dog owners and their dogs with other users of public places:
 - c. provide opportunities for dog owners to take their dog(s) to public places that are accessible, desirable, and provide diversity of experience for both the dog and owner:
 - d. promote safe interaction between dogs and people using public places to ensure that dogs do not injure, endanger, intimidate or otherwise cause distress to any person, in particular children and vulnerable adults:
 - e. manage conflict between dogs and protected wildlife, native flora, livestock, poultry, domestic animals and property.
- 14.2. When making decisions regarding any changes to a dog access rule on parks or beaches, Council will consider the matters provided in 14.1 above.
- 14.3. Council will provide information to dog owners via signage and Council's website that is comprehensive, easy to understand, and up to date.
- 14.4. Council will maintain rules on dog access in public places and private ways as per Schedules 1 and 2 of this Policy.
 The types of dog access rules provided in Schedules 1 and 2 are—
 - a. default dog access rules, to ensure there is a rule applied to all public places in the District where the rules provided in (b) to (f) below, and as detailed in Schedule 2, do not apply:
 - b. on-leash: a place shared with other users, where dogs must be on a leash and under control at all times:
 - c. prohibited: a place where dogs are not permitted to be, and other users have priority:
 - d. off-leash: a place shared with other users, where dogs may be off a leash but must still be under control at all times:
 - e. designated dog exercise area: a place where dog owners are the priority user. Dog owners may take their dogs off a leash, including dangerous dogs, but they must be under control at all times:
 - f. summer season rules: a place shared with other users where the dog access rules will be different depending on the time of day during the summer season. This is to minimise the conflict between dogs and other users of the space during peak hours.
- 14.5. From time to time, Council may make temporary changes to the dog access rules in Schedules 1 and 2 in relation to—
 - a. leisure and cultural events (including dog friendly events):
 - b. the protection of wildlife vulnerable to dogs:
 - c. the protection of flora vulnerable to dogs:
 - d. pest control in any park and/or beach:
 - e. other circumstances of a similar nature.

15. What does Whangarei District Council expect of dog owners?

15.1. Dog owners are expected to—

- a. respect other people's personal space and be aware that public places are for everyone's enjoyment and not everyone is fond of dogs; and
- b. know when their dog must be on a leash and always carry a leash in public; and
- c. keep their dog under control at all times in public places, including putting their dog on a shortened leash, even in off-leash areas if their dog is likely to ignore their commands; and
- d. make reasonable efforts to determine and comply with the dog access rule that applies at a park or on a beach before taking their dog(s) into the area; and
- e. ensure any female dog in season or a dog with a contagious disease does not enter or remain in any public place unless—
 - i. the dog is confined in a vehicle or cage for the purposes of transportation; or
 - ii. the owner of the dog has the permission of the occupier or person controlling the public place and complies with any reasonable conditions imposed.

16. What is covered by the Dog Control Bylaw 2024?

- 16.1. Owners must exercise their dog(s) in locations and/or ways that are consistent with the dog access rules. This includes ensuring their dog is under control on-leash, off-leash or in a designated dog exercise area as specified.
- 16.2. Dog owners must ensure that their dog is kept under control in public places and private ways.
- 16.3. The ability to make temporary changes to dog access rules.
- 16.4. Exemptions for working dogs from being prohibited in any areas.

Related information about Bylaw breaches

Owners who do not comply with the above are in breach of the Bylaw and may be subject to enforcement action.

Schedule 1

1. General dog access rules

The general dog access rules listed in Schedule 1 always apply, regardless of any rule stated in Schedule 2.

For example, if a park is listed as an off-leash area in Schedule 2 but the park has a playground, dogs are still prohibited on the playground.

Playgrounds and skateparks under the control of Council

Dogs are prohibited on all playgrounds and skateparks at all times and must be under control on a leash in the vicinity of all playgrounds and skateparks.

Sports fields under the control of Council

Dogs are prohibited on all sports fields at all times and must be kept under control on a leash in the vicinity of any sports field.

Council cemeteries

Dogs are **prohibited** from all Council-controlled cemeteries, unless:

- a. permission is obtained from an Authorised Officer; or
- b. signage indicates dogs are allowed, provided that the person who is accompanying the dog complies with any reasonable conditions imposed by Council in relation to the dog.

2. Default dog access rules

Unless otherwise stated in Schedule 2, the following default rules apply:

- 2.1 Dogs must be **under control on a leash** in all Council-controlled public places where there are no physical restrictions to access (such as fences or other indoor facilities). This includes:
 - a. all formed public roads (including any street, highway, access way, service lane, and any footpath, cycle track, shared path, bus stop and berm within the boundaries of the road);
 - b. private ways;
 - c. Council-controlled car parks;
 - d. Council-controlled boating areas (including any wharf, jetty, boat ramp or boat marshalling area).
- 2.2 Dogs are **prohibited** in all Council-controlled public places with restricted access (such as fenced sports stadiums and libraries), unless:
 - a. permission is obtained from an Authorised Officer; or
 - b. there is official Council signage which indicates dogs are permitted.
- 2.3 Where dog access is permitted under 2.2, dog owners must comply with any reasonable conditions imposed in relation to their dog(s).
- 2.4 Dogs are prohibited in all Council-controlled water supply or stormwater treatment areas that are generally accessible to the public unless there is official Council signage which indicates dogs are permitted.
- 2.5 Dogs must be under control on a leash in all other public places not under the control of Council (such as cafes, shopping malls, school grounds, non-Council cemeteries and urupā), unless:
 - a. there is signage indicating that dogs are prohibited; or
 - b. the person in charge of the place states that dogs are prohibited and requests the dog to be removed.
- 2.6 The summer season rule that applies to any area specified in Schedule 2 is:
 - a. Time: 9am to 5pm.
 - b. Season: 20 December to 31 January.

Schedule 2

Location specific dog access rules

Related information about Schedule 2

To assist in understanding, maps have been provided as [related information](#) for some of the areas listed in the following sections. In each case a map reference number is provided. The maps can be found at the end of Schedule 2.

1. Dogs are allowed under control off a leash in designated dog exercise areas

The following areas are designated dog exercise areas:

Area	Location
William Fraser Memorial Park on Pohe Island	Fenced area southeast of David Culham Drive
William Fraser Memorial Park on Pohe Island	Fenced area opposite carpark off Pohe Island Road

2. Dogs are allowed under control on a leash

- 2.1 The default rule on-leash rule in **Schedule 1** applies to all parks and reserves in the District unless a different rule, either for the entire park or a section of the park, is provided for in Schedule 2.

However, to assist in understanding, the list below of key parks and reserves in the District is provided as [related information](#), but does not constitute the complete list of parks and reserves where dogs must be on a leash. This list may be updated at any time without formality.

Related information			
Location	Appendix 1 Map #	Location	Appendix 1 Map #
Abbey Caves		<i>Mair Park - all areas not listed elsewhere in Schedule 2</i>	12
Albany Road Reserve		Marina Reserve Tutukaka	
<i>Barge Park – all areas not listed elsewhere in Schedule 2</i>	1	Nixon Street Park	1
Biller Road Walkway		Otangarei Central Reserve	
Cafler Park		Panorama Drive Reserve	
Cookson Park		Potter Park	
Fishbone Park		Puriri Park Reserve	
Fitzpatrick Reserve		<i>Raumanga Valley Scenic Reserve - all areas not listed elsewhere in Schedule 2</i>	23
Headland Park		Resolution Place/Endeavour Place Reserve	
King Street Park, Hikurangi		Sherwood Park	
Kitemaunga Avenue Reserve		<i>Tarewa Park - all areas not listed elsewhere in Schedule 2</i>	24
<i>Korau Road Reserve - all areas not listed elsewhere in Schedule 2</i>	10	Tikipunga Library Reserve	10

Related information			
Location	Appendix 1 Map #	Location	Appendix 1 Map #
Lake Waro		<i>Totara Parklands - all areas not listed elsewhere in Schedule 2</i>	26
Laurie Hall Park		Waipu Caves Reserve	
Lockheed Place Reserve		Wairau Drive Reserve	
<i>Limeburners Creek Walkway - all areas not listed elsewhere in Schedule 2</i>	11	<i>William Fraser Memorial Park on Pohe Island - all areas not listed elsewhere in Schedule 1 or 2</i>	11

2.2 Dogs are allowed under control on a leash on the following beach and foreshore areas:

Area	Location	Appendix 1 Map #
Bland Bay/Whangaruru	Tuparehuia Bay Beach	2
Marsden Bay	Beach and foreshore eastward to groyne	TBD
One Tree Point/Marsden Bay/Marsden Point	Beach and foreshore from Northport at Ralph Trimmer Drive to Mair Road	3
Whananaki North	Rockell Bay - <i>rocky outcrop to rocky outcrop</i>	31
Whananaki North	Brookers Bay/Woolshed Bay - <i>from the rocky outcrop at the northern end of Moureeses Bay northward to the northern outcrop at the northern end of Brookers Bay</i>	31
Tutukaka Coast	Matapouri Estuary Reserve - boat launching area	14
Tutukaka Coast	Ngunguru - Kauakarangi Bay sandspit (opposite Ngunguru School)	18

3. Dogs are allowed under control off a leash

3.1 On the following reserves/parks:

Location	Attachment 1 Map #
Anzac Park	
Barge Park - <i>main fields from road boundary to wetlands</i>	1
Beazley Park	
Blacksmith's Creek Walkway - <i>open grass area from beginning of walkway eastward to second bridge</i>	13
Cairnfield House parklet	
Cairnfield Reserve	
Cobham Place Reserve	
Corks Road/Amber Drive reserve	
Deveron Reserve	12
Elgin Place Reserve	
Gillingham Road - Waitaua Stream Reserve	
<u>Hikurangi - open grass area immediately south of transfer station</u>	<u>TBD</u>
Hodges Park	
Korau Road Reserve - grass area beyond low fence	10

Lower Panorama Drive Reserve	
Mair Park - <i>on the grass area on the western side of the river north of the footbridge and on connecting walkway to Deveron Reserve</i>	12
Mander Park	
Moody Ave Reserve	
Nottingham Road Reserve	
Okara – Former Old Boys rugby grounds playing fields	
<u>Panorama Drive Reserve (upper) - open grass area southeast of playground</u>	TBD
Pah Road Reserve	
Raumanga Valley Scenic Reserve - <i>grass area west of playground</i>	23
Raurimu Avenue Park	
Riverside Reserve	
Ross Street Park	
Shearwater Reserve	
Station Road Reserve	
Tamingi Street Reserve	
Tarewa Park - <i>grass area at southwestern end of park beyond footpath</i>	24
Tauroa Reserve	
Te Paka Reserve	
Tikipunga Sports Park - <i>grass area off Ngunguru Road and grass area bordered by walkway and Hatea River</i>	25
Totara Parklands - Wairau Drive/Harrison Drive - <i>large grass area north of shared path</i>	26
Waiarohia Reserve	
Waikaraka Beach Road grass area (road reserve)	27
Whale Tail Park/Kopipi Reserve	

3.2 On the following beach and foreshore areas:

Area	Location	Attachment 1 Map #
Bream Bay	From Mair Road beach access southward to <u>a line eastward from the eastern end of Taotahi Walk</u> beach access gate at carpark at intersection of Te Kamo St and Ruakanohi St	4
Bream Bay	From boardwalk beach access point between 117 and 119 Bream Bay Dr southward to pedestrian access point at Uretiti <u>Beach Conservation</u> campground Campground	6
<u>Bream Bay</u>	<u>From a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road</u>	TBD
Bream Head	Urquharts Bay foreshore from beginning to end of Urquhart Bay Road (Smugglers Bay carpark)	8
One Tree Point	Foreshore from Marsden Yacht Club southeastward to carpark area and foreshore access opposite 189 One Tree Point Road	19
Tutukaka Coast	Ngunguru - beach and foreshore area from south-eastern end of Kauakarangi Bay sandspit southeastward to the beginning of the Whangaumu lookout walkway	18
Tutukaka Coast	Ngunguru Estuary - Village side - foreshore area from opposite public toilets northward to opposite shops	17

Tutukaka Coast	Tutukaka Marina Beach	
Whananaki North	Foreshore area between boat ramps	29
Whangarei Heads	Waikaraka Beach Road foreshore area	27

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4. Dogs are prohibited

4.1 On the following reserves/parks:

Location	Attachment 1 Map #
AH Reed Park - <i>excluding Hatea River Walkway - Elizabeth Track</i>	
Barge Park - <i>all wetland areas</i>	1
Blacksmith's Creek Walkway - <i>all wetland areas and walkway beyond second bridge</i>	13
Coronation Scenic Reserve	
Dip Road Reserve (Kamo)	
Elgin Place Bush Reserve (Kamo)	
Granfield Place Reserve (Kamo)	
Kauri Mountain Reserve	
Kauri Mountain Trail	
Kukupu Road Reserve (Matapouri)	
Magnolia Avenue Bush Reserve (Kamo)	
Matakohe/Limestone Island	
Maungatapere Bush Reserve	
McLeod Bay Reserve (opposite Fire Station)	
Mt Aubrey - Reotahi Walkway & Mt Aubrey Walkway	16
Neptune Drive Reserve (McLeod Bay)	
Parihaka Mountain Bike Park - <i>all mountain bike trails</i>	20
Parihaka Reserve	
Pukenui Forest	
Tutukaka Lighthouse Walk - Kukutauwhao Island	
Whale Bay/Matapouri Reserve	
Whananaki Coastal Walkway	
Whananaki Sandspit	29
Whangārei Quarry Gardens	

4.2 On the following beach and foreshore areas and wetlands:

Area	Location	Attachment 1 Map #
Bland Bay/Whangaruru	Bland Bay Beach - northern end of beach southward to <u>a line northeast of the northernmost point of Logan Nicks Reserve</u> Whakaturia Ave access point	2
Bland Bay/Whangaruru	From Waitapu Rock eastward to <u>the western end of Tuparehuia Bay</u> northern end of Te Parapara Bay	2
Bream Bay	Princes Road foreshore area from one-way bridge on Ruakaka Beach Road northward to northern end of Princes Road boat ramp reserve	5
Bream Bay	Ruakaka Racecourse access point southward to end of accessible beach/foreshore at Ruakaka River	5
Bream Bay	Ruakaka River from one-way bridge on Ruakaka Beach Road northward along the foreshore around campground to northern pedestrian access point at Ruakaka Beach Reserve	5
Bream Bay	From Tip Road southward to Waipu River mouth.	7
Bream Head	From Urquhart Bay Road carpark southward around headland to southern end of Ocean Beach west of Moturaka and Tarakanahi Islands	8

Kauri Mountain	Kauri Mountain Beach, from Awarua Rock southward to rocky outcrop at northern end of Ocean Beach	9
Port Whangarei	Kioreroroa Road Wetlands/Limeburners Creek Walkway – <i>all wetland areas not part of the walkway</i>	11
Marsden Bay	Beach and foreshore area including wetlands from the groyne at Marsden Bay Beach eastward to Northport and southward to Papich Road	13
Marsden Bay	Beach northwest of channel and beach and foreshore from channel southeastward to groyne	13
Mimiwhangata	From Parapahi Point southward to southern end of Ruatahi Islet	15
Tutukaka Coast	From the eastern end of Ngunguru River Reserve (DOC Reserve) eastward then northward around the sandspit and southward to southern side of Horahora River mouth	17
Tutukaka Coast	Tutukaka Lighthouse walkway - beach and foreshore area between DOC reserve and Kukutauwhao Island	
Waipū	From accessible beach/foreshore area at Waipu River mouth southward to access track at northern end of campground	28
Whananaki	Whananaki Inlet	29
Whananaki	Whananaki Sandspit foreshore	29
Whananaki North	From the northwestern end of Motutara Beach southeastward around the headland to the boat ramp on Whananaki Wharf Road	29
Whananaki North	Otamure Bay - from rocky outcrop at western end of Otamure Bay eastward to Andesite Point	30
Whangarei Heads	Beach and foreshore from end of Reotahi Road southward and eastward to the western end (but not including) little Munro Bay	16

5. A summer season rule applies

- 5.1 Dogs are allowed on all beach and foreshore areas in the Whangarei District, except for those areas provided for under sections 2.2, 3.2 and 4.2 of Schedule 2, subject to the following summer season rule:

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control off a leash	All times Under control off a leash 
	Daytime (9am to 5pm)	Prohibited	
	Evening (after 5pm)	Under control off a leash	

- 5.2 Dogs are allowed in the areas below, subject to the following summer season rule:

- Pataua South at bridge/toilets - grass area from footbridge eastward to end of accessible grass area (Map #22)
- Whananaki North Boatramp Reserve (reserve next to boat ramp and foreshore area between boat ramps) (Map #29)
- Logan Nick Reserve (Bland Bay/Whangaruru) (Map #02)
- Parua Bay Reserve /Boatramp - grass area within bollards (Map #21)

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control off a leash	All times Under control off a leash 
	Daytime (9am to 5pm)	Under control on a leash	
	Evening (after 5pm)	Under control off a leash	

- 5.3 Dogs are allowed in the areas below, subject to the following summer season rule:

- Bland Bay Beach - From a line northeast of the northernmost point of Logan Nicks Reserve~~From access point at end of Whakaturia Avenue~~ southeastward to Waitapu Rock (Map #02)

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control on a leash	All times Under control on a leash 
	Daytime (9am to 5pm)	Prohibited	
	Evening (after 5pm)	Under control on a leash	

Related Information – Maps

to be finalised

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Whangarei District Council

Dog Control Bylaw 2024

draft

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1. Title

- 1.1. This Bylaw is the Dog Control Bylaw 2024.

2. Commencement

- 2.1. This Bylaw comes into force on **XX XXX 2024**.

3. Application

- 3.1. This Bylaw applies to the Whangarei District.

Part 1 – Preliminary provisions

4. Purpose

- 4.1. The purpose of this Bylaw is to give effect to Whangarei District Council's Dog Management Policy 2024 by:
- prohibiting dogs, whether under control or not, from specified public places;
 - requiring dogs, other than working dogs, to be controlled and on a leash in specified public places;
 - regulating and controlling dogs in any other public place;
 - requiring the owner of any dog that defecates in a public place or on land or premises other than that occupied by the owner to immediately remove the faeces;
 - requiring any female dog in season or a dog with a contagious disease to be excluded from public places;
 - requiring the owner of any dog which has not been kept under control on more than two occasions to be neutered; and
 - providing a review process for owners of dogs classified as menacing by behaviour to have that classification reviewed.

5. Interpretation

- 5.1 Any word used in this Bylaw that is defined in section 2 of the Dog Control Act 1996, and not included in clause 5.2 below, has, for the purposes of this Bylaw, the same meaning as in [section 2](#) of the Dog Control Act 1996.
- 5.2. In this Bylaw, unless the context otherwise requires:

Access way

has the meaning given by [section 315](#) of the [Local Government Act 1974](#).

Act

means the [Dog Control Act 1996](#).

Authorised Officer

means a Whangarei District Council staff member or a Council authorised contractor in charge of a public place.

Beach

means and includes the following:

- the foreshore as defined by [section 2](#) of the [Resource Management Act 1991](#)
- the inter-tidal zone above mean low water springs
- any adjacent area that can reasonably be considered part of the beach environment including areas of sand,

pebbles, shingle, dunes or coastal vegetation and includes the adjacent coastal marine.

Cemetery	means any land or premises for the burial and/or cremation of the dead and includes a closed cemetery and urupā.
Control	in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog.
Council	means Whangarei District Council, and includes any person or committee delegated to act on its behalf in relation to this Bylaw.
Council-controlled public place	means all public places owned or managed by Whangarei District Council.
Dangerous dog	means a dog that has been classified as a dangerous dog under section 31 of the Act.
Footpath	has the meaning given by section 315 of the Local Government Act 1974 .
Foreshore	has the meaning given by section 2 of the Resource Management Act 1991 .
Menacing dog	means a dog that has been classified as a menacing dog under section 33A of the Act.
Neutered dog	has the meaning given by section 2 of the Act.
Owner	has the meaning given by section 2 of the Act.
Park/Reserve	means any land vested in or administered by Council under the provisions of the Reserves Act 1977 ; and/or any park, domain or recreational area under the control or ownership of Council.
Playground	means a developed outdoor area that contains children's play equipment or objects, and includes a skatepark. Use of a playground means that the playground is currently being used or occupied by one or more persons.
Policy	means the Whangarei District Council Dog Management Policy 2024.
Premise	means any land, dwelling, storehouse, warehouse, shop, cellar, yard, building, or part of the same, or enclosed space separately occupied. All lands, buildings and places adjoining each other and occupied together are deemed to be the same premises.
Private way	has the meaning given by section 315 of the Local Government Act 1974 .
Public place	has the meaning given by section 2 of the Act.
Road	has the meaning given by section 315 of the Local Government Act 1974 , except that where a road is adjacent to a park, and the land within the road and park is developed in an integrated way, the common boundary between the road and park will be reduced or extended to: a. a line parallel to the road that follows any physical separation between the road and park (e.g. fence or bollards); or b. where no physical separation exists, a line parallel to the road that follows the edge of the road carriageway,

footpath or cycle track that is closest to the centre of the park.

Sports field

means any area developed or marked out, for example those used for soccer, rugby, or rugby league, artificial turf, sports range, sports park or velodrome. Use of a sports field means that the area is being used for sports events or training for sports events by one or more persons.

Skatepark

means a purpose-built recreational environment made for skateboarding, BMXing, rollerblading, roller skating or scootering, and includes pumptracks.

Service lane

has the meaning given by [section 315](#) of the [Local Government Act 1974](#).

Working dog

has the meaning given by section 2 of the Act.

- 5.3. Related information and links to webpages do not form part of this Bylaw and may be inserted, changed or removed without any formality.
- 5.4. The [Legislation Act 2019](#) applies to this Bylaw.
- 5.5. To avoid doubt, compliance with this Bylaw does not remove the need to comply with all other applicable Acts, regulations, bylaws, regional or district plans, or reserve or park management plans.

Part 2 – Regulation and control of dogs

6. Prohibition of dogs in public places

- 6.1. The owner of any dog must ensure that their dog (including when confined in a vehicle or cage) does not enter or remain in any public place specified as prohibited in Schedule 1 or 2 of the Policy.
- 6.2. Clause 6.1 does not apply to ~~any~~ working dog ~~accompanying and assisting a person or accompanying a person engaged in the dog's training; or~~ if a working dog is present in ~~the~~ prohibited area ~~in accordance with~~ [for the purpose of performing](#) its functions as provided for in section 2(b) of the Act.
- 6.3. The owner of any female dog in season must ensure the dog does not enter or remain in any public place or private way unless—
 - a. that dog is confined in a vehicle or cage for the purposes of transportation; or
 - b. the owner of that dog has the permission of the occupier or person controlling the public place and complies with any reasonable conditions imposed.
- 6.4. The owner of any dog infected with a contagious disease must ensure the dog does not enter or remain in any public place or private way unless that dog is confined in a vehicle or cage for the purposes of transportation to a veterinary clinic for treatment.

7. Dogs on a leash in public places and private ways

- 7.1. The owner of any dog must ensure that the dog is controlled on a leash in the public places and private ways as specified in Schedule 1 or 2 of the Policy.
- 7.2. Clause 7.1 does not apply to any dog confined in a vehicle or cage.

Related information

Working dogs include disability assist dogs, dogs kept by state departments such as police dogs and customs dogs, pest control dogs and dogs kept solely or principally as stock or herding dogs. A full list can be found in [section 2](#) of the Act.

Working dogs are excluded from the requirement to comply with clause 7 of this Bylaw under [section 10\(3\(c\)\)](#) of the Act.

Disability assist dogs are those dogs certified as disability assist dogs by the organisations listed in [Schedule 5](#) of the Act. Disability assist dogs are not required to comply with clauses 6 or 7 of this Bylaw under [section 75](#) of the Act.

[Section 54A](#) of the Act requires all dog owners to carry a leash at all times regardless of the provisions of this Bylaw. This section does not apply to the owner of a working dog in relation to the working dog.

8. Dogs off a leash in public places

- 8.1. The owner of any dog (other than a dangerous dog) may take that dog off a leash in the public places as specified in Schedule 2 of the Policy, provided that the dog is kept under control.

9. Dogs in designated dog exercise areas

- 9.1. The owner of any dog (including a dangerous dog that is muzzled) may take that dog off a leash in a designated dog exercise area as specified in Schedule 2 of the Policy, provided that dog is kept under control.

Related information

Clause 2 of this Bylaw defines 'control' as: "in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog."

10. Temporary changes to dog access rules

- 10.1. Council may make temporary changes to Schedules 1 and 2 of the Policy in relation to:
- a. leisure and cultural events (including dog friendly events);
 - b. dog training;
 - c. the protection of wildlife vulnerable to dogs;
 - d. the protection of flora vulnerable to dogs;
 - e. pest control in any park and/or beach (as defined in the Policy); or
 - f. other circumstances of a similar nature to subclauses (a) to (e) of this clause.
- 10.2. In making or removing a temporary change to Schedules 1 and 2 of the Policy under Clause 10.1, Council must:
- a. have regard to the dog access principles in the Policy;
 - b. specify in writing the reasons, location and timeframe for which the temporary change is to apply;
 - c. publicise the temporary change in a manner that Council considers appropriate in the circumstances; and
 - d. clearly indicate the area subject to the temporary change by 1 or more clearly legible signs affixed in 1 or more conspicuous places on, or adjacent to, the place to which the temporary change relates, unless it is impracticable or unreasonable to do so.

11. Dog faeces

- 11.1. When in a public place or premise, dog owners must ensure the immediate removal and disposal of their dog's faeces. This must be done in a way that does not cause a nuisance.
- 11.2. Clause 11.1 does not apply to a premise occupied by the owner.
- 11.3. Clause 11.1 does not apply to any working dog herding or driving stock on a road where the dog is kept solely or principally for the purposes of herding or driving stock.

12. Requirement to neuter uncontrolled dog

- 12.1. Council may require the owner of a dog to have that dog neutered if, within a 24-month period—
 - a. an infringement notice, under section 53 of the Act, has been issued at least twice; or
 - b. the dog has been impounded at least twice as a result of not being kept under control.
- 12.2. A breach of a requirement under Clause 12.1 is an offence against this Bylaw.

Related information

Section 53 of the Act provides that it is an offence for a dog owner to fail to keep their dog under control and in relation to this, Schedule 1 of the Act states the infringement fee for such an offence is \$200.

Section [52\(2\)](#) of the Act provides a specific description of the circumstances where a dog can be deemed to be "not under control" for the purposes of being issued an infringement notice under Clause 12.1.a as well as allowing for dogs to be impounded under Clause 12.1.b.

Dog owners who do not get their dog neutered in the time specified may be subject to enforcement action in accordance with Clause 12.2 of this Bylaw and will still be required to neuter their dog.

13. Objection to requirement to neuter uncontrolled dog

- 13.1. If a dog is required to be neutered under clause 12, the owner of that dog:
 - a. may, within 14 days of receiving the notice, object to the requirement by writing to Council; and
 - b. has the right to be heard in support of their objection under clause 13.1.a.
- 13.2. Council may, when considering an objection under clause 13, uphold or rescind the requirement. In making its determination, Council must have regard to:
 - a. the evidence which formed the basis for the requirement;
 - b. the matters relied upon in support of the objection; and
 - c. any other relevant matters.
- 13.3. Following its consideration of an objection under clause 13.2, Council must, as soon as practicable, give written notice to the dog owner of:
 - a. its determination on the objection; and
 - b. the reasons for its determination.

14. Effect of requirement to neuter uncontrolled dog

- 14.1. If a dog is required to be neutered under clause 12, the owner of that dog must, within 1 month of receiving the notice of the requirement, provide to Council a certificate issued by a veterinarian certifying that:
- a. the dog is or has been neutered; or
 - b. for reasons that are specified in the certificate, the dog will not be in a fit condition to be neutered before a date specified in the certificate.
- 14.2. If a certificate under clause 14(1)(b) is provided to Council, the owner must provide to Council, within 1 month after the date specified in that certificate, a further certificate under subclause 14 (1)(a).

15. Request for review of a menacing dog classification

- 15.1. If a dog has been classified as menacing due to its behaviour under [section 33A](#) of the Act, the owner may request the classification be reviewed no earlier than 24 months after the date of classification, if—
- a. the owner provides evidence of a dog behavioural assessment report, such report to be obtained at the owner's expense; and
 - b. the owner has not been issued with any infringement notices in relation to the dog within the preceding 24-month period.
- 15.2. Removing the classification of a dog as menacing is at Council's discretion.

Part 3 – Enforcement, offence, penalties

16. Enforcement

- 16.1. Council may use its powers under the Dog Control Act 1996 and the [Local Government Act 2002](#) to enforce this Bylaw.

17. Offences and penalties

- 17.1. Every person who breaches this Bylaw commits an offence.
- 17.2. Every person who commits an offence under this Bylaw is liable to the penalties under the Dog Control Act 1996 and the Local Government Act 2002.

Part 4 – Savings, transitional provisions

18. Requests for removal of menacing classification

- 18.1. Requests for the removal of a menacing classification due to the behaviour of a dog may be made for classifications made within the 12-month period prior to this Bylaw coming into force.

RESOLUTION TO EXCLUDE THE PUBLIC

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

1.	The making available of information would be likely to unreasonably prejudice the commercial position of persons who are the subject of the information. {Section 7(2)(c)}
2.	To enable the council (the committee) to carry on without prejudice or disadvantage commercial negotiations. {(Section 7(2)(i))}.
3.	To protect the privacy of natural persons. {Section 7(2)(a)}.
4.	Publicity prior to successful prosecution of the individuals named would be contrary to the laws of natural justice and may constitute contempt of court. {Section 48(1)(b)}.
5.	To protect information which is the subject to an obligation of confidence, the publication of such information would be likely to prejudice the supply of information from the same source and it is in the public interest that such information should continue to be supplied. {Section 7(2)(c)(i)}.
6.	In order to maintain legal professional privilege. {Section 2(g)}.
7.	To enable the council to carry on without prejudice or disadvantage, negotiations {Section 7(2)(i)}.

Resolution to allow members of the public to remain

If the council/committee wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

"That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.

Note:

Every resolution to exclude the public shall be put at a time when the meeting is open to the public.